



2025/415

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COMMISSION DELEGATED REGULATION (EU) 2025/415

of 13 December 2024

supplementing Regulation (EU) 2023/1114 of the European Parliament and of the Council with regard to regulatory technical standards specifying adjustment of own funds requirement and minimum features of stress testing programmes of issuers of asset-referenced tokens or of e-money tokens

(Text with EEA relevance)

THE EUROPEAN COMMISSION,

Having regard to the Treaty on the Functioning of the European Union,

Having regard to Regulation (EU) 2023/1114 of the European Parliament and of the Council of 31 May 2023 on markets in crypto-assets, and amending Regulations (EU) No 1093/2010 and (EU) No 1095/2010 and Directives 2013/36/EU and (EU) 2019/1937⁽¹⁾, and in particular Article 35(6), third subparagraph, thereof,

Whereas:

- (1) Requirements set out in Article 35(3) and (5) of Regulation (EU) 2023/1114 also apply to electronic money institutions issuing significant e-money tokens in accordance with Article 58(1), point (b), of that Regulation and, where required by the competent authority under Article 58(2) of that Regulation, to electronic money institutions issuing e-money tokens that are not significant.
- (2) When assessing the circumstances requiring higher own funds for issuers of asset-referenced tokens or e-money tokens, the competent authorities should consider the impact a failure of the tokens could have on financial stability, including large-scale redemptions, trigger of sales at extremely discounted prices due to financial distress of reserve assets or deposit withdrawals, potentially causing significant market disruptions, possible negative consequences for funding, and systemic risks across the financial system.
- (3) Given the novelty of asset-referenced tokens and e-money tokens and their issuers, no universal risks assessment framework exists. Therefore, when deciding whether an increase in own funds requirement is justified, competent authorities should perform the evaluation on any relevant issuers on a case-by-case basis following a broad assessment of all the relevant risk criteria set out in Article 35(3) of Regulation (EU) 2023/1114. Requiring a possible increase of own funds requirements should depend on issuer-specific circumstances. Issuers of asset-referenced tokens or e-money tokens that are subject to such own funds requirements should always be adequately capitalised for the risks they face. All relevant historical and current information available should be used for the said broad assessment and evaluation. Generally, increases in own funds requirements should only be requested when there is a higher degree of risk, which is not already covered, and the measures of the relevant issuer are insufficiently effective to reduce the risks.
- (4) Where a competent authority requires an increase in own funds requirements of the issuer of tokens, the timeframe provided to comply with such increase should be as short as possible since the relevant issuer, applying a proper and effective risk management, should always be adequately capitalised for the risks they face.
- (5) Where a competent authority concludes that the risks, including volatility, of a particular asset-referenced token or e-money token might lead to a significant deterioration of the financial situation of the relevant issuer or impact its financial stability, the competent authority should set a shorter timeframe for the relevant issuer to increase the own funds.

⁽¹⁾ OJ L 150, 9.6.2023, p. 40, ELI: <http://data.europa.eu/eli/reg/2023/1114/oj>.

- (6) To ensure that issuers of asset-referenced tokens or e-money tokens make sound risk management decisions, such as issuers and their relevant competent authorities should understand the financial and operational risks that come with increased use of asset-referenced or e-money tokens. In addition, they should consider interlinkages with ecosystem of issuers of tokens more broadly and inherent interconnectedness with the traditional financial sector stemming from reserves of assets held. Therefore, it is necessary to further specify the stress testing of the solvency and liquidity risk of issuers.
- (7) The impact of the so called ‘run-risk’, meaning a sudden spike in redemption requests of the tokens, resulting in a fire sale of the reserve assets backing the tokens, should be analysed via liquidity stress-testing. It is, therefore, essential to specify minimum features of the liquidity stress-testing such as those related to governance, data infrastructure, risk categorisation and frequency.
- (8) To ensure that the results of the stress test remain relevant, solvency stress test should be carried out on a quarterly basis for issuers of significant asset-referenced tokens or e-money tokens, and on a semi-annual basis for issuers of non-significant asset-referenced tokens or e-money tokens. The liquidity stress test should be carried out monthly.
- (9) The stress testing should consider severe but plausible financial stress scenarios and non-financial stress scenarios, such as liquidity shocks, credit shocks, interest rate and exchange shocks, redemption risk and operational and third-party shocks. It should also ensure that the internal governance arrangements and the relevant data infrastructures are in place to allow issuers of asset-referenced tokens or e-money tokens and competent authorities to understand the characteristics, quantify risks and gather evidence that such issuers are effectively allocating and mitigating risk on an ongoing basis.
- (10) As a guiding principle, the stress testing programmes should follow similar rules and approach as to credit institutions stress testing under Directive 2013/36/EU of the European Parliament and of the Council ⁽²⁾. However, considering that the risks of crypto-asset activities provided by issuers of asset-referenced tokens or e-money tokens other than credit institutions are different to those of credit institutions, it is necessary to group the crypto-asset activities into different risk categories for the purpose of the stress testing. Furthermore, grouping the crypto-asset activities and risks should ensure that issuers of the relevant tokens and competent authorities are able to identify all the functions, processes, and actors, along with their associated risks including any environmental, social, and governance factors, and identify any potential issues or risks. These identifications should facilitate the design and assignment of specific risk scenarios presented in the different activities of the relevant issuer. The scenarios should be well-defined in order to quantify their potential impact, the range of potential losses and the range of plausibility associated with the specific risk scenarios identified. Therefore, when identifying specific risks, the relevant issuer should specify the timeline of the stress scenario, which should be three years for the solvency stress test and up to one year for the liquidity stress test.
- (11) This Regulation is based on the draft regulatory technical standards submitted to the Commission by the European Banking Authority (EBA).
- (12) The EBA has conducted open public consultations on the draft regulatory technical standards upon which this Regulation is based, analysed the potential related costs and benefits and requested the advice of the Banking Stakeholder Group established in accordance with Article 37 of Regulation (EU) No 1093/2010 of the European Parliament and of the Council ⁽³⁾,

⁽²⁾ Directive 2013/36/EU of the European Parliament and of the Council of 26 June 2013 on access to the activity of credit institutions and the prudential supervision of credit institutions, amending Directive 2002/87/EC and repealing Directives 2006/48/EC and 2006/49/EC (OJ L 176, 27.6.2013, p. 338, ELI: <http://data.europa.eu/eli/dir/2013/36/oj>).

⁽³⁾ Regulation (EU) No 1093/2010 of the European Parliament and of the Council of 24 November 2010 establishing a European Supervisory Authority (European Banking Authority), amending Decision No 716/2009/EC and repealing Commission Decision 2009/78/EC (OJ L 331, 15.12.2010, p. 12, ELI: <http://data.europa.eu/eli/reg/2010/1093/oj>).

HAS ADOPTED THIS REGULATION:

Article 1

Scope of application

This Regulation applies to the following issuers of asset-referenced tokens or e-money tokens:

- (a) issuers of asset-reference tokens;
- (b) electronic money institutions issuing significant e-money tokens;
- (c) electronic money institutions issuing e-money tokens that are not significant, where required by the competent authority under Article 58(2) of Regulation (EU) 2023/1114.

Article 2

Procedure

1. The competent authority of the home Member State ('the competent authority') shall provide an issuer of asset-referenced tokens or e-money tokens with the draft of its decision to require the increase of own funds in accordance with Article 35(3) of Regulation (EU) 2023/1114 taking due account of the views expressed by the relevant issuer.
2. The draft referred to in paragraph 1 shall set out:
 - (a) the amount by which the own funds must be increased and the percentage higher than the amount of reserve of assets resulting from the application of Article 35(1), first subparagraph, point (b), of Regulation (EU) 2023/1114;
 - (b) relevant reasoning as to the higher degree of risk;
 - (c) whether that higher degree of risk can have a material impact on the financial situation of the issuer or on the financial stability of the wider financial system;
 - (d) whether that higher degree of risk is independent from the relevant issuer's governance or business model;
 - (e) the timeframe within which the relevant issuer shall increase its own funds in accordance with Article 3.
3. The issuer of asset-referenced tokens or e-money tokens shall express its views on any of the elements referred to in paragraph 2 within 25 working days of receipt of the draft.
4. The competent authority shall notify the issuer of asset-referenced tokens or e-money tokens of its final decision containing the elements listed in paragraph 2.
5. The issuer of asset-referenced tokens or e-money tokens shall submit to the competent authority within 25 working days of receipt of the decision referred to in paragraph 4, a detailed plan on how its own funds are to be increased within the timeframe set by the competent authority. The plan shall contain the following:
 - (a) time-bound steps, specific measures and procedures to carry out the increase within the set timeframe;
 - (b) the confirmation that the envisaged use of own funds items and instruments to comply with the increased requirement fully meet the conditions set out in Article 35(2) of Regulation (EU) 2023/1114.
6. Where the timeframe referred to in Article 3 set for the completion of the increase of own funds is longer than three months, the issuer of asset-referenced tokens or e-money tokens shall inform the competent authorities on a monthly basis on the plan's implementation progress.
7. The issuer of asset-referenced tokens or e-money tokens shall inform the competent authority immediately in case any step or procedure cannot be achieved within the timeframe respecting the requirements set out in Article 3.

8. The competent authority shall closely monitor the implementation of the plan.

9. Where a college referred to in Article 119(1) of Regulation (EU) 2023/1114 has been set up, the competent authority shall keep the European Banking Authority informed of all the information referred to in paragraphs 2 to 8, including the draft and the final decision, the plan and any relevant updates.

Article 3

Timeframe

1. Without prejudice to paragraph 2, the competent authority shall set a timeframe for the issuer of asset-referenced tokens or e-money tokens to adjust to higher own fund requirements, set on the basis of the assessment by the competent authority referred to in Article 35(3) of Regulation (EU) 2023/1114, that cannot exceed six months from the notification of the final decision referred to in Article 2(4).

2. When the competent authority sets the timeframe for the issuer of asset-referenced tokens or e-money tokens to adjust to higher own fund requirements, it shall take into account any potential higher degree of risk that can have a material impact on the financial stability of the wider financial system or of the issuer and any potential deficiencies in relevant issuer's governance or business model.

Article 4

Criteria

When adopting the decision referred to in Article 35(3) of Regulation (EU) 2023/1114, the competent authority shall consider all the following risk assessment criteria:

- (a) whether the issuer of asset-referenced tokens or e-money tokens is likely to breach the requirements referred to in Article 34(1), (8) and (10) and Articles 36 to 39 of Regulation (EU) 2023/1114 within the following 12 months by assessing whether there are potential deficiencies or weaknesses of the issuer of asset-referenced tokens or e-money tokens in applying all the requirements set out in Article 34 and in Articles 36 to 39 of Regulation (EU) 2023/1114;
- (b) whether redemption at par value and market value is ensured in normal or in stressed market circumstances;
- (c) whether there is an increased risk of a significant deterioration of the value of the reserve assets or the financial situation of the issuer of asset-referenced tokens or e-money tokens;
- (d) whether there is an increased operational risk arising from systems including the underlying distributed ledger and any trading platform, market infrastructure or payment system used for the issuance or the transfer of the token and from other third party crypto assets service providers such as custodians, which the tokens or reserve assets might rely on.

Article 5

Design of stress testing programme

1. Issuers of asset-referenced tokens or e-money tokens shall ensure that their stress testing programme is viable and realistic, and that stress testing results in informed decision-making at all management level on all existing and potential risks having material impact on the financial situation of the issuer.

2. Issuers of asset-referenced tokens or e-money tokens shall regularly review and assess their stress testing programme to determine its effectiveness, robustness and suitability both with regard to the risk characteristics of the relevant issuer itself and that of the relevant tokens issued and shall keep it updated. This assessment shall be made on an annual basis and shall fully reflect the external and internal conditions.

3. When designing the stress testing programme, issuers of asset-referenced tokens or e-money tokens shall consider all the following elements:

- (a) the effectiveness of the programme in meeting its intended purposes;
- (b) the need for improvements;
- (c) the identified risk factors, reasoning for and design of relevant scenarios, model assumptions and the sensitivity of results to these assumptions, as well as the role of expert judgement to ensure that it is accompanied by sound analysis;
- (d) the model performance, including its performance on out-of-sample data, such as data that were not used for model development;
- (e) how to incorporate possible solvency-liquidity adverse loops;
- (f) the adequacy of possible interlinkages between solvency stress tests and liquidity stress tests;
- (g) feedback received from competent authorities in the context of their supervisory or other stress tests;
- (h) the adequacy of the data infrastructure (systems implementation and data quality);
- (i) the appropriate level of involvement of senior management and the management body;
- (j) all assumptions including business and/or managerial assumptions, and management actions envisaged, based on the purpose, type and result of the stress testing, including an assessment of the feasibility of management actions in stress situations and a changing business environment;
- (k) the adequacy and transparency of the relevant documentation.

4. The stress testing programme shall be appropriately documented for all types of stress tests carried out.

5. The stress testing programme shall be evaluated across the organisation, for instance by the risk committee and internal auditors. Business units not responsible for the design and application of the programme or external experts shall also contribute to the assessment of this process, taking into account the relevant expertise for specific subjects.

6. Issuers of asset-referenced tokens or e-money tokens shall ensure, both for the initial design and for the assessment of the stress testing programme, that an effective dialogue has taken place with the involvement of experts from all business areas of the issuer and that the programme and its updates have been properly reviewed by the senior management and management body of the issuer, who are also responsible for monitoring its execution and oversight.

Article 6

Type of stress testing

1. Issuers of asset-referenced tokens or e-money tokens shall implement a solvency stress test and a liquidity stress test.

2. The solvency stress test shall capture the impact of certain developments including macro or microeconomic scenarios, on the overall capital position of the issuer of asset-referenced tokens or e-money tokens, including on its minimum or additional own funds requirements, by means of projecting the issuers' capital resources and requirements, highlighting the issuer' vulnerabilities and assessing its capacity to absorb losses and the impact on its solvency positions.

3. The liquidity stress test shall capture the impact of certain developments including macro or microeconomic scenarios, from a funding and market risk perspective and shocks to the liquidity of the reserve of assets and to the overall liquidity position of the issuer of asset-referenced tokens or e-money tokens, including to its minimum or additional liquidity requirements.

4. The specific design, complexity and level of detail of the stress test methodologies shall be appropriate to the nature of the asset-referenced token or e-money token, including redemption rights' nature, scale and size, as well as the complexity, concentration and composition of its reserve assets.

Article 7

Minimum frequency of the different stress testing exercises

1. The frequency for solvency stress test shall be, at least, quarterly for issuers of significant asset-referenced tokens or e-money tokens and semi-annual for issuers of non-significant asset-referenced tokens or e-money tokens.
2. The frequency of liquidity stress test shall be, at least, monthly for all issuers of asset-referenced tokens or e-money tokens.

Article 8

Internal governance arrangements under the stress testing exercises

1. The stress testing programme of the issuer of asset-referenced tokens or e-money tokens shall be adopted by its management body, which shall be responsible for its implementation in accordance with this Regulation and with Regulation (EU) 2023/1114.
2. The stress testing programme shall include an assessment as to whether the members of the management body collectively have sufficient knowledge, skills and experience to perform all the following:
 - (a) fully understand the impact of stress events on the overall risk profile of the issuer;
 - (b) ensure that clear responsibilities and sufficient resources such as skilled human resources and information technology systems, have been assigned and allocated for the execution of the stress tests;
 - (c) actively engage in discussions with staff involved in stress testing and with persons to whom tasks related to stress testing are outsourced;
 - (d) challenge key modelling assumptions, the scenario selection and the assumptions underlying the stress tests in general;
 - (e) decide on the necessary management actions and discuss them with the competent authorities.
3. The stress testing programme shall be designed in a way which allows stress tests to be executed in accordance with the relevant internal policies and procedures of the issuer.
4. Issuers of asset-referenced tokens or e-money tokens shall ensure that all elements of the stress testing programme, including its assessment, are appropriately documented and regularly updated, where relevant, in the internal policies and procedures.
5. Issuers of asset-referenced tokens or e-money tokens shall ensure that the stress testing programme design foresees an effective communication across business lines and management levels, with a view to raising awareness, improving risk culture and instigating discussions on existing and potential risks as well as on possible management actions.
6. The stress testing programme shall be designed as an integral part of an issuer's risk management framework. Stress tests shall be designed to support different business decisions and processes as well as strategic planning. The strategic decisions shall take into account the shortcomings, limitations and vulnerabilities identified during stress testing.
7. The outputs of stress tests shall be used as inputs to the process of establishing an issuer's risk appetite and limits and shall act as a planning tool to determine the effectiveness of new and existing business strategies and assess the possible impact on own funds and liquidity.

*Article 9***Relevant data infrastructure for stress testing programmes**

1. Issuers of asset-referenced tokens or e-money tokens shall ensure that the stress testing programme is supported by an adequate and transparent data infrastructure.
2. Issuers of asset-referenced tokens or e-money tokens shall ensure that their data infrastructure has the capacity to capture the extensive data needs of their stress testing programme and that they have in place mechanisms to ensure a continuous and consistent ability to conduct stress testing as planned in accordance with the programme.
3. Issuers of asset-referenced tokens or e-money tokens shall ensure that the data infrastructure allows for both flexibility and appropriate levels of quality and control.
4. Issuers of asset-referenced tokens or e-money tokens shall ensure that their data infrastructure is proportionate to their size, complexity, and risk and business profile, and allows for the performance of stress tests covering all material risks that the institution is exposed to.
5. Issuers of asset-referenced tokens or e-money tokens shall devote sufficient human, financial and material resources to guarantee the effective development and maintenance of their data infrastructure, including information technology systems.

*Article 10***Methodology, common reference parameters and the plausibility of assumptions**

1. Issuers of asset-referenced tokens or e-money tokens shall identify the following risks categories:
 - (a) risks to the value, transferability, liquidity, accessibility or exchangeability of the asset-referenced tokens or e-money tokens and reserve assets;
 - (b) risks arising from systems, on which the asset-referenced token or e-money token relies, including the underlying distributed ledger or any other technology of the token and any trading platform, market infrastructure or payment system used for the issuance or the transfer of the tokens;
 - (c) risks arising from the performance of contractual arrangements, which the relevant issuer has entered into with other issuers, crypto-asset service providers, financial institutions or any other natural or legal person, for the issuance or transfer of the tokens or for the establishment, management, custody or investment of the reserve assets, including any arrangement whereby the issuer outsources tasks.
2. To assess the risks referred to in paragraph 1, issuers of asset-referenced tokens or e-money tokens shall identify specific risk scenarios using historical scenarios and/or hypothetical scenarios in relation to the different risk categories referred to in paragraph 1.
3. The specific risk scenarios referred to in paragraph 2 shall be well-defined and their potential impact shall be quantifiable.
4. When identifying specific risks, issuers of asset-referenced tokens or e-money tokens shall specify a time horizon for 3 years for the risk events relating to the solvency stress test and up to 1 year for the liquidity stress test, the asset at risk and a precise description of the risk scenario.
5. Issuers of asset-referenced tokens or e-money tokens shall quantify or have approximate estimations of the severity and plausibility of the stress scenarios identified as well as the potential losses coming from those scenarios.

*Article 11***Entry into force**

This Regulation shall enter into force on the twentieth day following that of its publication in the *Official Journal of the European Union*.

This Regulation shall be binding in its entirety and directly applicable in all Member States.

Done at Brussels, 13 December 2024.

For the Commission
The President
Ursula VON DER LEYEN
